

SENATE No. 300

The Commonwealth of Massachusetts

PRESENTED BY:

Barry R. Finegold

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing oversight of youth sports and combat sports in the Commonwealth.

PETITION OF:

NAME:

Barry R. Finegold

DISTRICT/ADDRESS:

Second Essex and Middlesex

SENATE No. 300

By Mr. Finegold, a petition (accompanied by bill, Senate, No. 300) of Barry R. Finegold for legislation to create a state athletic commission to provide oversight of youth and combat sports in Massachusetts. Economic Development and Emerging Technologies.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 2601 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing oversight of youth sports and combat sports in the Commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 12 of chapter 22 of the General Laws is hereby repealed.

2 SECTION 2. Section 17 of chapter 23N of the General Laws, as appearing in the 2022
3 Official Edition, is hereby amended in paragraph (2) by striking the figure “17.5” and inserting
4 in place thereof the following:- “16.5”.

5 SECTION 3. Said section 17 of said chapter 23N, as so appearing, is hereby further
6 amended in paragraph (3) by striking the figure “27.5” and inserting in place thereof the
7 following:- “25.5”.

SECTION 4. Said section 17 of said chapter 23N, as so appearing, is hereby further amended in paragraph (4) by striking the figure “1” and inserting in place thereof the following:-
“4”.

SECTION 5. Section 19 of said chapter 23N, as amended by section 13 of chapter 2 of the Acts of 2023, is hereby further amended by striking paragraphs (2) and (3) and inserting in place thereof the following 3 paragraphs:-

(2) For the purposes of funding after-school and out-of-school activities, including, but not limited to, youth athletics and other activities that improve student health, literacy programs, English language learning programs, academic tutoring, art, theater and music programs and community service programs;

(3) For the purposes of providing matching grants to elementary and secondary youth sports, organizations, clubs and other school groups to attend events, including, but not limited to, academic events and programs, cultural events and award ceremonies both nationally and internationally; and

(4) For a transfer to the State Athletic Commission Fund established pursuant to section 2AAAA of chapter 29 for the purpose of rebalancing any lost revenue from licensing fees waived in accordance with section 24 of chapter 23O.

SECTION 6. The General Laws are hereby amended by inserting after chapter 23N the following new chapter:-

Chapter 23O. The Massachusetts State Athletic Commission

Section 1. Definitions.

As used in this chapter, the following words shall have the following meanings unless the context clearly requires otherwise:

“Affiliate”, a person who directly or indirectly controls, or is controlled by, or is under common control with, a specified person.

“Boxing”, the art of attack and defense with gloved fists practiced as a sport limited to legal blows above the waist and on the front or sides of the opponent.

“Business”, a corporation, sole proprietorship, partnership, limited liability company or any other organization formed for the purpose of carrying on a commercial enterprise.

“Chair”, the chair of the commission.

“Combat sports background”, a minimum of 10 years of documented experience in professional unarmed combative sports including, but not limited to: (i) a professional combatant, (ii) a licensed promoter, (iii) a licensed manager, (iv) a licensed referee, (v) a licensed judge or (vi) regulator.

“Commission”, the Massachusetts state athletic commission established in section 2.

“Executive director”, the executive director of the Massachusetts state athletic commission.

“Kickboxing”, a form of competition in which a person delivers blows with any part of the arm below the shoulder, including the hand and any part of the leg below the hip, including the foot.

“Mixed martial arts”, any form of unarmed combat involving the use of a combination of techniques including, but not limited to, grappling, kicking and striking, commonly associated with boxing, kickboxing, wrestling and various disciplines of the martial arts including, but not limited to, karate, kung fu, tae kwon-do, Jiu-Jitsu or any combination thereof.

“Person”, an individual, corporation, association, operation, firm, partnership, trust or other form of business association.

“Toughman”, a boxing or unarmed combative sporting match or exhibition in which combatants do not qualify for licensure by the commission as a professional combatant or for amateur status by a commission-approved amateur organization; provided, however, that “toughman” shall not include matches or exhibitions conducted pursuant to section 22.

“Unarmed combative sport”, any form of competition in which a blow is usually struck which may reasonably be expected to inflict injury and no weapon is used; provided, however, that “unarmed combative sport” shall not include professional wrestling.

“Youth sport”, any organized physical activity or athletic or sporting event in which the team or contestants are predominantly under the age of 18; provided, however, that “youth sports” shall not include, for the purposes of this chapter, any athletic or sporting event subject to the rules and regulations promulgated by the Massachusetts Interscholastic Athletic Association, Middle Level Athletic Committee of the Massachusetts School Administrators Association, National Collegiate Athletic Association or other governing body as determined by the commission.

“Youth sports background”, expertise in general athletics and youth sports; provided, however, that relevant experience may include, but not be limited to: (i) a prior role as athletic

director in an educational setting or as program director of a youth sports program, or (ii) significant academic study in physical education or youth development.

Section 2. Massachusetts state athletic commission; duty, qualification, term and compensation of commissioners; divisions; executive leadership.

(a) (1) There shall be a Massachusetts state athletic commission which shall consist of 5 commissioners, 3 of whom shall be appointed by the governor, at least 1 of whom shall have a combat sports background in the sport of boxing and at least 1 of whom shall have a combat sports background in the sport of mixed martial arts, muay thai or kickboxing; and 2 of whom shall be appointed by a majority vote of the attorney general, the speaker of the house and the senate president and who shall have a youth sports background. The governor shall designate the chair of the commission.

(2) Each commissioner shall serve for a term of 5 years or until a successor is appointed and shall be eligible for reappointment. A person appointed to fill a vacancy in the office of a commissioner shall be appointed in a like manner and shall serve for only the unexpired term of such commissioner. The governor may remove a commissioner if the commissioner: (i) is guilty of malfeasance in office; (ii) substantially neglects the duties of a commissioner; (iii) is unable to discharge the powers and duties of the commissioner's office; or (iv) commits gross misconduct.

Three commissioners shall constitute a quorum and the affirmative vote of 3 commissioners shall be required for an action of the commission; provided, however, that the affirmative vote of at least 1 commissioner with a youth sports background shall be required for any action of the commission with regard to the youth sports division. The chair or 3 members of the commission may call a meeting; provided, however, that notice of all meetings shall be given

to each commissioner and to other persons who request such notice. The commission shall adopt regulations establishing procedures, which may include electronic communications, by which a request to receive notice shall be made and the method by which timely notice may be given.

Commissioners shall receive salaries not greater than three quarters of the salary of the commissioner of administration under section 4 of chapter 7; provided, however, that the chair shall receive a salary equal to the salary of the commissioner of administration. Commissioners shall devote their full time and attention to the duties of their office.

(3) Commissioners shall receive compensation for traveling expenses necessarily incurred in the performance of their duties and shall be allowed such sums for clerical assistance as the commission may approve; provided, however, that the commission may designate 1 or more employees to represent the commission at any match or exhibited held under this chapter; provided further, that the commission may approve that such employee receives compensation for travel and incidental expenses necessarily incurred in the discharge of their duties; and provided further, that the commission shall establish a comprehensive employee accountability and internal control system that closely aligns with the human resources division's rules and policies established pursuant to section 28 of chapter 7 for employees and managers not subject to collective bargaining under chapter 150E which takes into account rates set by the United States General Services Administration for similar services when determining the maximum reimbursable rate for such travel and incidental expenses.

(4) The commission shall annually elect 1 of its members to serve as secretary and 1 of its members to serve as treasurer. The secretary shall keep a record of the proceedings of the commission and shall be the custodian and keeper of the records of all books, documents and

papers filed by the commission and of its minute book. The secretary shall cause copies to be made of all minutes and other records and documents of the commission and shall certify that such copies are true copies, and all persons dealing with the commission may rely upon such certification. No funds shall be transferred by the commission without the approval of the commission and the signature of the treasurer.

(b) (1) The chair shall have and exercise supervision and control over all the affairs of the commission. The chair shall preside at all hearings at which the chair is present and shall designate a commissioner to act as chair in the chair's absence. To promote efficiency in administration, the chair shall, from time to time, make such division or re-division of the work of the commission among the commissioners as the chair deems expedient.

(2) All of the commissioners shall, if so directed by the chair, participate in the hearing and decision of any matter before the commission; provided, however, that at least 2 commissioners shall participate in the hearing and decision of matters other than those of formal or administrative character coming before the commission; provided further, that at least 1 commissioner with a youth sports background shall participate in any such matters concerning youth sports; and provided further, that any such matter may be heard, examined and investigated by an employee of the commission designed and assigned by the chair, with the concurrence of 1 other commissioner. Such employee shall make a report in writing relative to the hearing, examination and investigation of every such matter to the commission for its decision. For the purposes of hearing, examining and investigating any such matter, such employee shall have all of the powers conferred upon a commissioner by this section. For each hearing, the concurrence of a majority of the commissions participating in the decision shall be necessary.

(c) (1) The commission shall appoint an executive director. The executive director shall serve at the pleasure of the commission, shall receive such salary as may be determined by the commission, and shall devote full time and attention to the duties of the office. The executive director shall be a person with skill and experience in management and shall be the executive and administrative head of the commission. The executive director shall be responsible for administering and enforcing the provisions of law relative to the commission and to each administrative unit thereof and shall serve as the commission's liaison to the governor and general court.

(2) The executive director may, from time to time and subject to the approval of the commission, establish within the commission such administrative units as may be necessary for the efficient and economical administration of the commission and, when necessary for such purpose, may abolish any such administrative unit or may merge any 2 or more units; provided, however, that the commission shall at all times retain a division of combat sports responsible for discharging the duties of sections 4 to 23, inclusive, and a division of youth sports responsible for discharging the duties of section 24. The executive director shall prepare and keep current a plan of organization of the commission, of the assignment of its functions to its various administrative units, office and employees and of the place at which and the methods by which the public may receive information or make requests. A current copy of the plan of organization shall be kept on file with the state secretary and in the office of the secretary of administration and finance.

(3) The executive director shall appoint and employ the following positions:

(i) General counsel, who shall provide legal advice, ensure adherence to all applicable general and special laws and represent the commission in legal proceedings;

(ii) A compliance officer, who shall monitor adherence to any applicable state regulations at all events licensed by the commission, collaborate with promoters and ensure that events align with licensing agreements entered into under this chapter; provided, however, that the compliance officer shall have a combat sports background or experience in regulatory roles within athletics;

(iii) A chief of communications and economic development, who shall prioritize national promotion, venue support, strategic partnerships, public relations, economic impact analysis, community development or any duties as may be assigned by the executive director;

(iv) A chief of the combat sports division, who shall have a combat sports background in the commonwealth; and

(v) A chief of the youth sports division, who shall have a youth sports background in the commonwealth.

(4) The executive director may, subject to the approval of the commission, employ additional employees, consultants, agents and advisors and shall attend meetings of the commission. In the case of an absence of vacancy in the office of the executive director or in the case of disability as determined by the commission, the commission may designate an active executive director to serve as executive director until the vacancy is filled or the absence or disability ceases. The acting executive director shall have all of the powers and duties of the executive director and shall have similar qualification as the executive director.

(5) The executive director may appoint such persons as the executive director shall consider necessary to perform the functions of the commission; provided, however, that chapter 31 and section 9A of chapter 30 shall not apply to commission employees. If an employee serving in a position which is classified under said chapter 31 or in which an employee has tenure by reason of said section 9A of said chapter 30 shall be appointed to a position within the commission which is not subject to said chapter 31, the employee shall, upon termination of service in such position, be restored to the position which the employee held immediately prior to such appointment; provided however, that the employee's service in such position shall be determined by the civil service commission in accordance with the standards applied by that commission in administering said section 9A of said chapter 30 and without loss of seniority, retirement or other rights to which uninterrupted service in such prior position would have entitled such employee. During the period of such appointment, each person so appointed from a position in the classified civil service shall be eligible to take any competitive promotional examination for which such person would otherwise have been eligible. Employees of the commission, including employees working in the bureau, shall be classified as group 1 pursuant to paragraph (g) of subdivision (2) of section 3 of chapter 32.

(d) (1) The commission shall require a prospective employee to: (i) submit an application and a personal disclosure on a form prescribed by the commission which shall include a complete criminal history, including convictions and current charges for all felonies and misdemeanors; (ii) undergo testing which detects the presence of illegal substances in the body; (iii) provide fingerprints and a photograph consistent with standards adopted by the state police; and (iv) provide authorization for the commission to conduct a background check. The commission shall verify the identification, employment and education of each prospective

employee, including: (i) legal name, including any alias; (ii) all secondary and post-secondary educational institutions attended regardless of graduation status; and (iii) employment history.

(2) The commission shall not hire a prospective employee if the prospective employee has: (i) been convicted of any felony or misdemeanor involving a minor; (ii) had prior involvement with any violation of the provisions of chapters 23K or 23N; (iii) been dismissed from prior employment for gross misconduct or incompetence; or (iv) intentionally made a false statement concerning a material fact in connection with the prospective employee's application to the commission. If an employee is charged with a felony or misdemeanor while employed by the commission, the commission shall suspend the employee, with or without pay, and may terminate employment with the commission upon conviction if, in the discretion of the commission, the offense for which the employee has been convicted bears a close relationship to the duties and responsibilities of the position held with the commission.

(e) Chapters 268A and 268B shall apply to the commissioners and to employees of the commission; provided, however, that the commission shall establish a code of ethics for all members and employees that shall be at least as restrictive as said chapters 268A and 268B. A copy of the code shall be filed with the state ethics commission. The code shall include provisions reasonably necessary to carry out the purposes of this chapter and any other laws subject to the jurisdiction of the commission including, but not limited to: (i) prohibiting the receipt of gifts by commissioners and employees from any combat sports or youth sports licensee, affiliate or other person or entity subject to the jurisdiction of the commission; (ii) prohibiting the participation by commissioners and employees in a particular matter as defined in section 1 of said chapter 268A that affects the financial interest of a relative within the third degree of consanguinity or a person with whom such commissioner or employee has a significant

relationship as defined in the code; and (iii) providing for recusal of a commissioner in any decision of the commission due to a potential or perceived conflict of interest; provided, however, that a commissioner's or employee's involvement with a youth sports team or organization shall not be cause for a conflict of interest if said commissioner or employee is involved solely as the parent of an athlete, a volunteer coach, or a volunteer trainer; and provided further, that any such relationship shall be disclosed to the state ethics commission.

(f) (1) No employee of the commission shall pursue any other business or occupation or other gainful employment outside of the commission without the prior written approval of the commission that such employment will not interfere or be in conflict with the employee's duties to the commission.

(2) No commissioner shall hold a direct or indirect interest in, or be employed by, a person licensed by the commission for a period of 3 years after the termination of employment with the commission.

(3) No employee of the commission shall acquire an interest in, or accept employment with, a person licensed by the commission for a period of 1 year after the termination of employment with the commission.

(g) The commissioners and those employees holding major policymaking positions shall be sworn to the faithful performance of their official duties. The commissioners and those employees holding major policymaking positions shall: (i) conduct themselves in a manner so as to render decisions that are fair and impartial and in the public interest; (ii) avoid impropriety and the appearance of impropriety in all matters under their jurisdiction; (iii) avoid all prohibited communications; (iv) require staff and personnel subject to their direction and control to observe

the same standards of fidelity and diligence; (v) disqualify themselves from proceedings in which their impartiality might reasonably be questioned; and (vi) refrain from financial or business dealings which would tend to reflect adversely on impartiality.

Neither the commission nor any of its officers, agents, employees, consultants or advisors shall be subject to sections 9A, 45, 46 and 52 of chapter 30, chapter 31 or to chapter 200 of the acts of 1976.

(h) The Massachusetts state athletic commission shall be a commission for the purposes of section 3 of chapter 12.

Section 3. Powers of the commission.

The commission shall have all powers necessary or convenient to carry out and effectuate its purposes including, but not limited to, the power to:

(i) appoint officers and hire employees; establish, and from time to time amend, a plan of organization that it considers expedient;

(ii) execute all instruments necessary or convenient for accomplishing the purposes of this chapter;

(iii) enter into agreements or other transactions with a person, including, but not limited to, a public entity or other governmental instrumentality or authority in connection with its powers and duties under this chapter;

(iv) appear on its own behalf before boards, commissions, departments or other agencies of municipal, state or federal government;

267 (v) apply for and accept subventions, grants, loans, advances and contributions of money,
268 property, labor or other things of value from any source, to be held, used and applied for its
269 purposes;

270 (vi) provide and pay for advisory services and technical assistance that may be necessary
271 in its judgment to carry out this chapter and fix the compensation of persons providing such
272 services or assistance;

273 (vii) prepare, publish and distribute, with or without charge as the commission may
274 determine, such studies, reports, bulletins and other materials as the commission considers
275 appropriate;

276 (viii) require an applicant for a position which requires a license under this chapter to
277 apply for such license and approve or disapprove any such application or other transactions,
278 events and processes as provided in this chapter;

279 (viii) deny an application or limit, condition, restrict, revoke or suspend a license,
280 registration, finding of suitability or approval, or fine a person licensed, registered, found
281 suitable or approved for any cause that the commission deems reasonable;

282 (ix) gather facts and information applicable to the commission's obligation to issue,
283 suspend or revoke licenses, work permits or registrations for: (i) a violation of this chapter or any
284 regulation adopted by the commission; (ii) willfully violating an order of the commission
285 directed to a licensee; (iii) the conviction of a criminal offense; or (iv) the violation of any other
286 offense which would disqualify such a licensee from holding a license, work permit or
287 registration;

conduct investigations into the qualifications of all applicants for employment by the commission and by any regulated entity and all applications for licensure;

(x) request and receive from the state police, the criminal history systems board or other criminal justice agencies including, but not limited to, the Federal Bureau of Investigation and the Internal Revenue Service, such criminal offender record information relating to criminal and background investigations as necessary for the purpose of evaluating employees of, and applicants for employment by, the commission and any regulated entity, and evaluating licensees and applicants for licensure under this chapter;

(xi) levy and collect assessments, fees and fines and impose penalties and sanctions for a violation of this chapter or any regulations promulgating by the commission;

(xii) collect taxes and fees under this chapter;

(xiii) restrict, suspend or revoke licenses issued under this chapter;

(xiv) conduct adjudicatory proceedings and promulgate regulations in accordance with chapter 30A;

(xv) refer cases for criminal prosecution to the appropriate federal, state or local resources;

(xvi) issue subpoenas and compel the attendance of witnesses at any place within the commonwealth, administer oaths and require testimony under oath before the commission in the course of an investigation or hearing conducted under this chapter;

(xvii) maintain an official internet website for the commission;

adopt, amend or repeal regulations for the implementation, administration and enforcement of this chapter; and

(xviii) act as trustees for the Boxers' Fund established in section 2AAAA½ of chapter 29 and the State Athletic Commission Fund established in section 2AAAA of said chapter 29.

Section 4. Necessity of license to hold boxing, kickboxing, mixed martial arts or other unarmed combative sporting event or sparring match or exhibition.

No boxing, kickboxing, mixed martial arts or other unarmed combative sporting event or sparring match or exhibition for a prize or purse, or at which an admission fee is charged, either directly or indirectly, in the form of dues or otherwise, whether professional or amateur, shall take place or be conducted except in accordance with a license granted as hereinafter provided by the commission. Applications for a license shall be accompanied by the fee, as established annually the commissioner of administration and finance pursuant to section 3B of chapter 7, which may take into consideration the population of the city or town or the seating capacity of the building or place in which the match or exhibition is to be held; provided, however, that a license, the fee for which is established on the basis of seating capacity of a building or place as aforesaid, shall be exercised only in such building or place. Toughman or similar type matches or exhibitions shall be prohibited. In the case of exhibitions or bouts held in accordance with the rules and regulations of amateur organizations as may be approved by the commission, the commission may issue special licenses without the requirement of a bond as provided in section 6 or payment of the annual fee.

Any persons holding, conducting, promoting or participating in a match or exhibition held without a license, as provided in section 5, or a toughman or similar type match or

330 exhibition, shall be punished by imprisonment in the house of corrections for not more than 3
331 months or by a fine of not more than \$10,000, or both such fine and imprisonment.

332 Matches or exhibitions under the governance of the Massachusetts Interscholastic
333 Athletic Association, the National Collegiate Athletic Association or any equivalent school or
334 college organization shall be exempt from the requirements of this section if the competitors are
335 amateurs; provided, however, that any such match or exhibition that the commission determines
336 to be a youth sport shall be subject to the licensing requirements contained herein. In the case of
337 such a youth sport, the commission may, at its discretion, issue a special license without the
338 requirement of a bond as provided in section 6 or payment of the annual fee.

339 A license may be granted to an applicant under this chapter, notwithstanding the social
340 security number requirements of section 13A of chapter 30A; provided, however, that the
341 applicant provides a form of identification sufficient to identify the applicant.

342 Section 5. Issuance and term of license; revocation of license; issuance of license for
343 toughman competition prohibited.

344 In accordance with this chapter, the commission may issue licenses to conduct boxing,
345 kickboxing, mixed martial arts or other unarmed combative sporting events, sparring matches
346 and exhibitions. The license shall be valid only for the date approved by the commission. The
347 commission may revoke the license at any time in the interest of public safety. No license shall
348 be issued for a toughman competition or similar event.

349 Section 6. Bond

350 Except as otherwise provided in subsections (a) and (c) of section 4, no license as
351 aforesaid shall be granted unless the licensee has executed and filed with the commission a bond
352 in a penal sum of \$50,000, with such surety or sureties as shall be satisfactory to the commission,
353 running to the commission, conditioned upon the payment to the commonwealth of the sums
354 mentioned in section 15, and upon faithful compliance by the licensee with the provisions of this
355 chapter, the rules and regulations of the commission and with such other laws of the
356 commonwealth and may be applicable to anything done by the licensee in pursuance of the
357 license. The commission may enforce the terms of the bond for the use and benefit of any person
358 who may suffer loss by reason of the failure by the licensee to carry out terms of the bout
359 agreement or due to acts of the licensee determined to be detrimental to combat sports. The bond
360 shall also provide for a forfeiture to the commonwealth, recoverable at the suit of the attorney
361 general, of each sum, not exceeding \$10,000, as may be stipulated in the bond for each case of
362 non-compliance.

363 Section 7. Licenses for physician, promoter, referee, judge, timekeeper, professional
364 boxer, kickboxer, mixed martial arts contestant or other unarmed combative sport contestant, or a
365 manager, trainer or second of such a contestant; fees.

366 No person shall act, directly or indirectly, as a physician, promoter, referee, judge,
367 timekeeper, professional boxer, kickboxer, mixed martial arts contestant or other unarmed
368 combative sport contestant, or as a manager, trainer or second of such a contestant, at a match or
369 exhibition or as a matchmaker therefore, unless licensed by the commission upon receipt of the
370 classified fee to be determined annually by the commissioner of administration and finance
371 under section 3B of chapter 7. The commission shall set minimum requirements for licensure
372 based upon skill or other fundamental prerequisites deemed necessary to adequately and safely

execute the functions of the respective position. The commission may refuse to license any individual who does not meet those requirements or whose safety and well-being it determines will be put at substantial risk by engaging in their respective position. Whoever acts in such capacity, without being so license shall be punished by a fine of not more than \$10,000. Any official who desires to officiate without charge at amateur boxing or sparring matching or exhibitions shall be licensed without charge. In accordance with section 12, the commission may license an individual who is under 18 years of age without charge.

Section 8. Amateur boxing, mixed martial arts or other unarmed combative sporting events, sparring matches and exhibitions; acknowledgment of rules and regulations of amateur governing body; licensing of amateur referees, judges and officials; limitation on number and timing of competitions; gloves.

Notwithstanding section 9, the commission shall, in the conduct of all amateur boxing, mixed martial arts or other unarmed combative sporting events, sparring matches and exhibitions sanctioned by the national governing body and its local affiliate which are appointed and recognized by the United States Olympic Committee for such purposes, acknowledge and follow the rules and regulations of the amateur governing bodies.

No amateur match which is subject to section 4 shall be held unless it is licensed by the commission and sanctioned and supervised by an amateur sanctioning organization approved by the commission.

The commission shall recognize and license, upon receipt of the classified fee to be determined annually by the commissioner of administration and finance of section 3B of chapter

7, the amateur referees, judges and other amateur officials assigned to the amateur matches or exhibitions by the amateur governing bodies and certified under their rules and regulations.

The commission shall cooperate fully with the amateur boxing governing bodies to assure that amateur boxers are eligible to participate and compete for selection to the United States Olympic boxing team.

No contestant in amateur boxing shall compete in more than 2 tournaments in any 7-day period, nor shall the contestant participate in more than 3 contests in a period of 13 hours. All amateur boxing or sparring matches or exhibitions shall terminate not later than 12:30 a.m. on the day following the start of the match.

During a contest, contestants in amateur boxing or kickboxing matches or exhibitions shall wear gloves weighing at least 8 ounces each unless otherwise authorized by the amateur boxing governing body. During a contest, contestants in amateur mixed martial arts and other unarmed combative sport matches or exhibitions shall wear gloves weighing at least 4 ounces each unless otherwise authorized by the amateur governing body.

Section 9. Necessity of referee and judges; power and duties; vote; decision; forfeitures; fees of officials; payment

(a) At every boxing, kickboxing, mixed martial arts or other unarmed combative sporting event, sparring match or exhibition there shall be in attendance a referee, duly licensed under this section and sections 7 and 8. There shall also be in attendance at least 3 duly-licensed judges, each of whom shall, at the termination of a match or exhibition, vote for the contestant in whose favor the decision should, in their opinion, be rendered or, for a draw if, in their opinion, neither contestant is entitled to a decision in their favor and the decision shall be rendered in favor of the

416 contestant receiving a majority of the votes or, if neither receives a majority as aforementioned, a
417 decision of a draw shall be rendered. Upon the rendering of a decision, the vote of each judge
418 shall be announced from the ring. The referee shall have full power to stop the match or
419 exhibition whenever they deem it advisable because of the physical condition of a contestant or
420 when 1 contestant is clearly outclassed by their opponent or for other sufficient reason.

421 (b) The commission shall set forth rules and regulations for contracts between a manager
422 and an unarmed combatant and contracts between a promoter and an unarmed combatant. An
423 unarmed combatant may not enter into a contract with a manager or a promoter unless it is filed
424 with the commission prior to a scheduled contest in an amount of time set forth by the
425 commission. The commission shall only honor a contract that is executed and notarized on a
426 form provided by the commission, unless the terms of the contract comply with the requirements
427 set forth by the commission.

428 (c) The commission shall be the sole arbiter of a breach of contract and may establish
429 rules governing breach of contract dispute resolution. If during a contest, a contestant is believed
430 to not be competing in good faith, a member of the commission or their designee shall withhold
431 any prize, remuneration or purse until a hearing can be held. The commission shall at a hearing
432 following the contest declare forfeited any prize, remuneration or purse or any part thereof,
433 belonging to a contestant if, in the judgment of a majority of the commissioners, after
434 consultation with the judges and the referee, the contestant was not competing in good faith.

435 (d) Whoever violates any provision of this chapter or who conducts themselves at any
436 time or place in a manner which is deemed by the commission to reflect discredit to any unarmed

combative sports, may have their license revoked and fined, suspended or otherwise disciplined in such manner as the commission may direct.

Section 10. Necessity of physician; duties; qualifications; fees; certificate of contestant's fitness

At any boxing, kickboxing, mixed martial arts or other unarmed combative sporting event, sparring match or exhibition there shall be in attendance at least 1 duly licensed physician, whose duty it shall be to observe the physical condition of the contestants and advise the referee or judges with regard thereto. A competent physician who has at least 3 years of experience as a medical practitioners may be licensed. No contestant shall be allowed to enter the ring unless a physician licensed under this section and section 7 certifies in writing that the contestant is physically fit to engage in the proposed contest. The physician's fee, as fixed by the commission, shall be paid by the licensee conducting the match or exhibition.

Section 11. Number and time of rounds; frequency of tournaments or contests; gloves; protective devices

No boxing, kickboxing or other unarmed combative sporting match or exhibition shall exceed 10 rounds; provided, however, if a match is to determine a championship, it may exceed the round limits with the prior approval of the commission. No mixed martial arts match or exhibition shall exceed 3 rounds; provided, however, if a match is to determine a championship, it may exceed the round limits with the prior approval of the commission. No round in a boxing, kickboxing or other unarmed combative sporting match or exhibition shall exceed 3 minutes. No round in a mixed martial arts match or exhibition shall exceed 5 minutes. No contestant in a professional match or exhibition shall participate in more than 10 rounds unless otherwise

authorized by the commission, as the case may be, during a 72-hour period. During a contest, contestants in professional boxing and kickboxing matches or exhibitions shall wear gloves weighing at least 8 ounces each unless otherwise authorized by the commission. During a contest, contestants in mixed martial arts and other unarmed combative sporting events, matches or exhibitions shall wear gloves weighing at least 4 ounces each unless otherwise authorized by the commission. Every contestant participating in boxing, kickboxing, mixed martial arts or other unarmed combative sporting event or exhibition shall be required to wear standard protective devices as outlined by regulation by the commission.

Section 12. Ages of contestants and persons admitted to matches

(a) Except as hereinafter provided, no contestant under 18 years of age or over 34 years of age shall be permitted to engage in a boxing, kickboxing, mixed martial arts or other unarmed combative sport event, sparring match or exhibition, except that the age requirement shall not apply to a world boxing champion who is still actively engaged as a professional boxer, or to a former boxing champion of the world who has not been inactive as a professional boxer for more than 2 years from the date of their last boxing contest; provided, however, that an amateur boxer shall be allowed to compete as such at the age of 16. At the discretion of the commission, a professional boxer, kickboxer, mixed martial arts contestant or other unarmed combat sports contest over the age of 34 may be permitted to engage in a match if the contestant has passed a physical examination or is otherwise medically cleared to participate by a physician selected by the commission. At the discretion of the commission, an amateur boxer who is 16 or 17 years of age may be licensed as a professional boxer. The foregoing shall not apply to courses of instruction in boxing, kickboxing, mixed martial arts or other unarmed combative sports sponsored and conducted by recognized boys and girls clubs, youth organizations, private clubs

and athletic associations, schools or colleges, municipal or state park or recreational departments, law enforcement organizations or incorporated, private, nonprofit boxing teams, under the supervision of qualified instructors and directors; provided, however, that at the discretion of the commission the requirements relative to amateur boxing, kickboxing, mixed martial arts or other unarmed combative sports under sections 4 to 23, inclusive, may apply to such courses of instruction and any related matches or exhibitions.

(b) No person under the age of 16 shall be admitted to, or be present at, a professional match or exhibition unless accompanied by an adult.

Section 13. Boxer, kickboxer, mixed martial arts contestant or other unarmed combative sport contestant previously knocked out six or more times

No professional boxer, kickboxer, mixed martial arts contestant or other unarmed combative sport contestant licensed under section 7 who has been knocked out, technically or otherwise, or lost a contest by way of submission, 6 or more times in the preceding 12 months shall take part in a match or exhibition until they have been examined and found fit to take part in a match or exhibition, by a physician selected by the commission, at a place and time designated by the commission. The cost of conducting the examination shall be borne by the contestant. If a contestant is found unfit to engage in a match or exhibition, they shall be excluded from participation for 3 months, after which time they may make a request to the commission for another physical examination. A license issued to an individual under section 7 shall be immediately suspended for at least 30 days if the individual is knocked out.

Section 14. Insurance on contestants

A person licensed under section 5 to conduct boxing, kickboxing, mixed martial arts or other unarmed combative sport events, sparring matches or exhibitions, except those persons to whom a special license may be granted thereunder without the requirement of a bond or payment of the annual fee, shall take out a policy of accident insurance on each contestant participating in the match or exhibition in the amount of \$5,000 to compensate said contestant for medical and hospital expenses incurred as the result of injuries received in such match or exhibition and a policy in the amount of \$50,000 to be paid to the estate of the deceased contestant in the event of death to the contestant resulting from participation in the match or exhibition. The premiums on the policies shall be paid by the licensee.

Section 15. Percentage of receipts paid to commonwealth; reports to commission; filing of contracts entered into for sale, lease or exploitation of broadcasting rights; enforcement

(a) Every licensee holding or conducting a boxing, kickboxing, mixed martial arts or other unarmed combative sporting event, sparring match or other unarmed combative sporting event, sparring match or exhibition shall, before the commencement of the final feature bout of the event, pay to the commission a sum equal to 5 per cent of the total gross receipts from the sale of tickets or from admission fees. The licensee shall pay to the commission an additional sum equal to 2 per cent of the total gross receipts generated by the sale, lease or other exploitation of the television, pay-per-view, motion picture or other broadcasting rights, regardless of whether the event is broadcast live or in the future, such sum to be paid by the licensee whether or not the licensee ever receives a portion of that amount; provided, however, that if the match or exhibition is conducted as an incidental feature in an event or entertainment of a different character, the portion of the total receipts and the total amount shall be paid to the commonwealth, as the commission may determine or as may be fixed by rule adopted by the

commission. If the payment is for a fixed amount, payment shall be made 24 hours prior to the event but in no event shall payment be made later than 48 hours after the live event. Pay-per-view showings of an event more than 48 hours after the live event shall be exempt from the requirements of this section. The broadcasting fee imposed under this section shall be not more than \$75,000 per event. Within 72 hours after its conclusion, the licensee shall furnish to the commonwealth a report, showing the exact number of tickets sold and admission fees collected for the contest, the gross receipts thereof and such other data as the commission may require.

(b) A licensee holding or conducting a boxing, kickboxing, mixed martial arts or other unarmed combative sporting event, sparring match or exhibition shall, at least 48 hours before a licensed contest or exhibition, file with the commission a copy of all contracts entered into for the sale, lease, or other exploitation of broadcasting rights for the contest or exhibition. All contracts filed with the commission under this section shall be exempt from disclosure in section 10 of chapter 66. The commission shall enforce this section.

Section 16. Boxers' Fund

Every licensee holding or conducting any boxing, kickboxing, mixed martial arts or other unarmed combative sporting event or sparring match or exhibition shall, before the commencement of the feature bout of the event, pay to the state treasurer, in addition to the payment required under section 15, a sum equal to 1 per cent of the total gross receipts from the sale or tickets or from admission fees; provided, however, that if the match or exhibition is conducted as an incidental feature in an event or entertainment of a different character, the portion of the total receipts shall be paid to the commonwealth as the commission may

determine. Such sums shall be credited by the state treasurer to the Boxers' Fund established pursuant to section 2AAAA½ of chapter 29.

Section 17. Number of persons admitted; limitation

No licensee under section 5 shall sell or cause to be sold or issued more tickets or invitations purporting to admit to any such match or exhibition, or otherwise admit to the same, more persons than are admissible according to the authorized capacity of the building, or part thereof actually used therefor.

Section 18. Revocation or suspension of license; administrative penalty

(a) Any license may be revoked or suspended by the commission for a violation of any provision of this chapter or of any other law of the commonwealth or of any rule or regulation adopted by the commission or whenever the licensee has, in the judgment of the commission, been guilty of any act or offense detrimental to the public interest.

(b) The commission may suspend a license of a combatant issued under section 7 without a hearing upon a finding that it would be unsafe for the individual to compete until either the passing of a fixed period of time or upon medical clearance. The commission may assess an administrative penalty not to exceed \$2,000 for each violation of this chapter or the commission's rules and regulations committed by an individual required to be licensed herein.

Section 19. Financial interest of licensee in boxer; prepayment of contestant

No licensee under section 5 shall have, directly or indirectly, any financial interest in a boxer, kickboxer, mixed martial arts contestant or other unarmed combative sport contestant competing on premises owned or leased by the licensee, or in which the licensee is otherwise

interested. No contestant in a match or exhibition shall be paid for services before the same are rendered.

Section 20. Enjoining unlicensed or illegal matches

The superior court shall have jurisdiction in equity upon any information filed by the commission, the attorney general, the district attorney for the district where a match or exhibition is held or is announced to be held, the police authorities of the city or town where a match or exhibition is held or is announced to be held, or by any five legal voters of the commonwealth stating that a certain building, tenement or place is used for matches or exhibitions, whether professional or amateur, by an individual, group, partnership, club, corporation or association not licensed under section 5 or contrary to any provision of this sections 4 to 23, inclusive, or that a match or exhibition is being advertised or announced, or has been advertised or announced, to take place in a certain building or place, or that a certain individual, club, corporation or association is selling, exchanging or giving away tickets, tokens or symbols purporting to entitle the holder to the right or privilege of attending a certain match or exhibition not licensed by the commission and contrary to the provisions of this chapter to enjoin and abate the same as a common nuisance.

Section 21. Prohibition of licensed event by municipality; notice of exercise of municipal option

The commission shall notify a municipality in writing of the issuance of a license for an event scheduled to take place therein within 24 hours of said issuance. At its option, a municipality may prohibit an event licensed by the commission under section 5. The prohibition shall be by a majority vote of the city council with approval of the mayor in a city or by a

majority vote of the select board in a town. The municipal option shall be exercised within 7 days of issuance of a license by the commission. The municipality shall notify the commission within 24 hours of any such action. Upon receipt of such notice, the commission shall immediately notify the promoter of the determination of the municipality and the license shall be revoked.

Section 22. Courses of instruction in boxing, kickboxing, mixed martial arts and other unarmed combative sports or matches or exhibitions sponsored by youth organizations, private clubs, law enforcement agencies, etc.

Except as otherwise provided herein, courses of instruction in boxing, kickboxing, mixed martial arts and other unarmed combative sports, or sparring matches or exhibitions sponsored and conducted by recognized boys and girls clubs, youth organization, private clubs and athletic associations, schools and colleges, law enforcement agencies or municipal or state parks and recreation departments, under the supervision of qualified instructors and directors, shall not require a license under section 5 to be conducted; provided, however, that the commission may at its discretion require a match or exhibition under this section to procure a license under section 5 if such match or exhibition is conducted in substantially the same character as amateur or professional matches which require licensure pursuant to this chapter.

Section 23. Statutes not applicable to matches or exhibitions

Sections 9 to 12, inclusive, of chapter 265 shall not apply to any boxing, kickboxing, mixed martial arts or other unarmed combative sporting event or sparring match or exhibition licensed under section 5 and conducted under and in accordance with this chapter and any accompanying rules and regulations promulgated by the commission.

Section 24. Regulation of youth sports; public education campaign; recommendations

(a) The commission shall promulgate rules and regulations related to participation in and the administration of youth sports in the commonwealth. Regulations may include, but not be limited to: (i) maximum participation hours per youth sport in a defined period of time; (ii) licensing of businesses and coaches, including licensing fees and the conditions under which any such licensing fee may be waived to promote access to participation; (iii) criminal offender record information, provided that the commission may prohibit an individual from obtaining any applicable license on the basis of a felony conviction in order to prioritize player safety, at the discretion of the commission; and (iv) standards for player safety, including concussion protocols and athletic trainer requirements.

(b) Except as provided for by any general or special law to the contrary, the commission shall enforce such rules and regulations; provided, however, that penalties for noncompliance under this section may include, but not be limited to: (i) suspension or revocation of any applicable license issued by the commission; (ii) enjoinder and abatement of a particular youth sports event occurring in violation of this section; or (iii) fines as determined by the commission.

(c) The commission shall conduct a public education campaign regarding youth sports. The commission shall exercise its discretion with regard to distribution means and methods; provided, however, that said campaign shall be directed primarily toward parents, coaches, youth athletes and other members of the public. Said campaign shall include, but not be limited to, the physical and mental health, personal financial and economic development impacts of youth sports. The commission shall consult with subject matter experts in the preparation of said campaign, including on the matters of single sport specialization, appropriate training and

634 overtraining conscious of athlete age and the relationship between youth sports participation and
635 higher education or career outcomes.

636 (d) The commission shall annually, not later than November 1, file a written report with
637 the respective clerks of the senate and house of representatives, the joint committee on economic
638 development and emerging technologies and the joint committee on health care financing
639 describing therein the activities undertaken by the commission regarding youth sports for the
640 prior year, including any recommendations or requests for legislation arising therefrom in
641 furtherance of the purpose of the commission and the current rates of any licensing fees fixed by
642 the commission in accordance with subsection (a) of this section, if any. The commission may, at
643 any time, request or recommend such legislative remedies, provided that any such previously
644 extended request or recommendation shall also be summarized in said report.

645 SECTION 7. Chapter 29 of the General Laws, as so appearing, is hereby amended by
646 striking section 2AAAA and inserting in place thereof the following:-

647 Section 2AAAA. State Athletic Commission Fund

648 (a) There shall be established and set up on the books of the commonwealth a separate
649 fund to be known as the State Athletic Commission Fund. The Massachusetts state athletic
650 commission, established pursuant to section 2 of chapter 23O, shall be the trustee of the fund and
651 shall expend monies to finance operational activities of said commission. The fund shall be
652 credited any appropriations, bond proceeds or other monies authorized by the general court and
653 specifically designated to be credited thereto, any monies from licensing fees or other fees and
654 fines collected under sections 4 to 7, inclusive, 15 and 18 of chapter 23O and section 12 of
655 chapter 265 and any monies credited from the Youth Development and Achievement Fund

656 pursuant to section 19 of chapter 23N. All available monies in the fund that are unexpended at
657 the end of each fiscal year shall not revert to the General Fund and shall be available for
658 expenditure in the subsequent fiscal year. Said commission shall record all expenditures made by
659 a subsidiary on the Massachusetts management and account reporting system according to
660 regulations established by the state comptroller. For the purposes of accommodating
661 discrepancies between the receipt of retained revenues and related expenditures, said commission
662 may incur expense and the comptroller may certify for payment amounts not to exceed the lower
663 of \$750,000 or the most recent revenue estimate as reported in the state accounting system.

664 (b) The Massachusetts state athletic commission shall, for the purposes of compliance
665 with state finance law, operate as a state agency as defined in section 1 of chapter 29 and shall be
666 subject to the provisions applicable to agencies under the control of the governor including, but
667 not limited to, chapters 7, 7A, 10 and 29; provided, however, that the comptroller may identify
668 any additional instructions or actions necessary for the commission to manage fiscal operations
669 in the state accounting system and meet statewide and other governmental accounting and audit
670 standards. Unless otherwise exempted by law or the applicable central service agency, said
671 commission shall participate in any other available commonwealth central services including, but
672 not limited to, the state payroll system under section 31 of said chapter 29 and may purchase
673 other goods and services provided by state agencies in accordance with comptroller provisions.
674 The comptroller may chargeback said commission for the transition and ongoing costs for
675 participation in the state accounting and payroll systems and may retain and expend such costs
676 without further appropriation for the purposes of this section. Said commission shall be subject
677 to section 5D of chapter 29 and subsection (f) of section 6B of chapter 29.

(c) The commission shall annually submit a finance plan to the secretary of administration and finance, the chairs of the house and senate committees on ways and means and the chairs of the joint committee on economic development and emerging technologies. Said finance plan shall include, but not be limited to, activities related to the State Athletic Commission Fund and the Boxers' Fund established pursuant to section 2AAAA½."

SECTION 8. Chapter 29 of the General Laws, as so appearing, is hereby further amended by inserting after section 2AAAA the following new section:-

Section 2AAAA½. Boxers' Fund

There shall be established and set up on the books of the commonwealth a separate fund to be known as the Boxers' Fund. The Massachusetts state athletic commission, established pursuant to section 2 of chapter 23O, shall be the trustee of the fund and shall expend for the use and benefit of a contestant or former contestant in an event governed by chapter 23O and any accompanying regulations promulgated by said commission under the purview of said commission for funeral expenses or assistance needed as a result of an injury suffered while participating in such an event. The fund shall be credited any appropriations, bond proceeds or other monies authorized by the general court and specifically designated to be credited thereto and any monies collected under section 15 of chapter 23O. All available monies in the fund that are unexpended at the end of each fiscal year shall not revert to the General Fund and shall be available for expenditure in the subsequent fiscal year."

SECTION 9. Sections 32 to 51, inclusive, of chapter 147 of the General Laws are hereby repealed.

699 SECTION 10. Section 9 of chapter 265 of the General Laws, as appearing in the 2022
700 Official Edition, is hereby amended by striking the words “sections thirty-two to fifty, inclusive,
701 of chapter one hundred and forty-seven” and inserting in place thereof the following:- “sections 4
702 to 23, inclusive, of chapter 23O”.

703 SECTION 11. Section 10 of said chapter 265, as so appearing, is hereby amended by
704 striking the words “sections thirty-two to fifty, inclusive, of chapter one hundred and forty-
705 seven” and inserting in place thereof the following:- “sections 4 to 23, inclusive, of chapter
706 23O”.

707 SECTION 12. Section 12 of said chapter 265, as so appearing, is hereby amended by
708 striking the words “sections 32 to 50A, inclusive, of chapter 147,” and inserting in place thereof
709 the following:- “sections 4 to 23, inclusive, of chapter 23O”.